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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S MEMORANDUM IN
SUPPORT OF INDEPENDENT ACTION
IN EQUITY**

**Fraud on the Court: Defense Denial of
Possession Under Oath
With Preemptive Response to Anticipated
Defenses**

PURPOSE AND SCOPE

This memorandum supports the Amended Complaint for Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud. The gravamen is fraud on the court: Defendants PHILLIPS, SPALLAS & ANGSTADT LLP, Priya D. Navaratnasingham, and Alberto Reyna, acting on behalf of Defendants Subhi Abdelhalim and CSAA Insurance Exchange, made false representations to the Court about receipt, possession, and prior production of critical incident recordings. Defendants Michael R. Chambers and CARBONE, SMITH & KOYAMA proximately facilitated that

1 fraud by transferring the defense file to PSA on May 4, 2023, without ensuring proper documen-
2 tation of the production history, enabling successor counsel to make those false representations.
3 When those representations were made in open court and in written motions, they were made un-
4 der circumstances in which counsel was under a duty to speak truthfully. The Court relied on
5 those representations to make procedural and evidentiary rulings that deprived Plaintiff of a fair
6 opportunity to present dispositive evidence. Plaintiff has named PSA, Navaratnasingham, Reyna,
7 Chambers, and Carbone, Smith & Koyama as defendants so they may be served and held account-
8 able for their role in the fraud on the court.

9 **THE CORE ALLEGATION: DEFENSE DENIED POSSESSION DESPITE** 10 **HAVING RECEIVED THE MATERIALS**

11 Plaintiff alleges that Defendants Navaratnasingham and Reyna, acting for Defendants Subhi Ab-
12 delhalim, CSAA Insurance Exchange, and PHILLIPS, SPALLAS & ANGSTADT LLP, made the
13 following representations to the Court that were false or misleading:

- 14 1. **At the February 18, 2025 pretrial hearing:** Defendant Navaratnasingham represented that
15 the defense office did not receive the 911 call until the day of the Mandatory Settlement
16 Conference (or immediately before), that it was “news to me,” and that counsel could not
17 confirm prior receipt or production. Defendant Reyna was present.
- 18 2. **In Motion in Limine No. 6 (January 17, 2025):** Defendant Navaratnasingham, on behalf
19 of Defendant PSA, asserted that recorded materials, including the 911 call audio, “were not
20 produced in discovery” and should be excluded.
- 21 3. **In Motion in Limine No. 17 (January 17, 2025):** Defendant Navaratnasingham signed the
22 Declaration in Support. Defendant PSA asserted that the 911 log and recording “were not
23 produced during discovery, rather produced at the eleventh hour prior to trial,” that “Defen-
24 dant has no idea where this 911 call log or audio recording came from,” and that “Defendant
25 has no idea who created the log and recording.”
- 26 4. **At trial (April 16, 2025):** Defendants Navaratnasingham and Reyna represented that a sup-
27 plemental police narrative was “not anything that we received as part of the subpoena” and
28 expressed uncertainty about “what recording” Plaintiff was referring to regarding the 911 call.

1 Plaintiff alleges these representations were materially false because sworn hearing testimony estab-
2 lished that the defense side had already received and possessed the 911 audio, bodycam footage,
3 and CAD materials during discovery and depositions, before the Mandatory Settlement Confer-
4 ence and before trial. Defendant Navaratnasingham had substituted in as counsel on May 4, 2023,
5 and thus had possession of the defense file containing these materials for approximately 20 months
6 before trial. The defense had knowledge of and access to these materials. Denying possession,
7 receipt, or knowledge of them in court was a false representation to the Court.

LEGAL FRAMEWORK: EXTRINSIC FRAUD AND FRAUD ON THE COURT

Extrinsic fraud occurs when a party is deprived of the opportunity to present their claim or defense because fraud prevented a real contest on the merits. (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) False statements to the court that cause the court to make procedural and evidentiary rulings based on materially false information constitute extrinsic fraud. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735.)

When counsel represents to the court that evidence was not received, or that counsel has no knowledge of it, and the court relies on that representation to exclude evidence, deny continuances, or defer admission, the resulting rulings are procured under a false premise. That is process corruption. The complaining party cannot cross-examine a court ruling. The only remedy is equitable relief to set aside the judgment and restore a fair contest.

THE THREE-LEG FRAMEWORK

Plaintiff alleges a three-leg mechanism:

Leg 1 (Knowledge and Access): Sworn hearing testimony established that the defense side received the 911 audio, bodycam footage (approximately five videos), and CAD log during discovery and depositions. Defendants Michael R. Chambers and Carbone, Smith & Koyama had possession of the defense file during discovery (August 2022 through May 4, 2023). The defense file was transferred from Chambers and Carbone Smith & Koyama to PSA on May 4, 2023 (Substitution of Attorney, Transaction ID # 69953800). The defense had knowledge of and access to the materials.

Leg 2 (False Representations to the Court): Despite that access, Defendants Navaratnasingham and Reyna represented to the Court in motions and in open court that the materials were not received, were “news to me,” and that counsel had no knowledge of their provenance. Those representations were false or misleading in light of the production history.

Leg 3 (Court Reliance): The Court accepted those representations and made rulings that excluded evidence, denied continuances, and deferred admission of the 911 call. Plaintiff was prevented from presenting critical evidence in a timely, orderly manner.

WHY THIS IS FRAUD ON THE COURT, NOT MERE DISCOVERY DISPUTE

A simple failure to produce in discovery may be addressed by motion to compel. Here, the harm flowed from false statements to the Court. When counsel tells the Court that materials “were not produced in discovery” or were not received until “the eleventh hour,” and the Court relies on that to exclude or defer evidence, the Court has been misled. The ruling is based on a false premise. The party seeking to present the evidence cannot correct the record by cross-examining the court. The fraud is embedded in the procedural framework of the trial itself.

California law recognizes that false statements to the court that induce procedural rulings constitute extrinsic fraud warranting equitable relief. (*Aldrich*, supra; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66.)

CONCLUSION

Plaintiff alleges that Defendants PSA, Navaratnasingham, and Reyna denied possession and knowledge of critical incident recordings before the Court, despite having received those materials during discovery. Defendants Chambers and Carbone, Smith & Koyama proximately enabled that fraud by transferring the defense file without proper documentation of the production history. The Court relied on those representations. The resulting rulings deprived Plaintiff of a fair opportunity to present the evidence. Equity demands that the judgment be set aside and the case retried on a fair record.

Plaintiff respectfully requests that the Court treat the defense representations as alleged: false or misleading statements about possession that corrupted the judicial process and procured the judgment through fraud on the court.

PART II: PREEMPTIVE RESPONSE TO ANTICIPATED DEFENSES

The following addresses, with binding authority, three categories of anticipated defense motions before they are filed: (1) the litigation privilege under Civil Code section 47, subdivision (b); (2) the anti-SLAPP statute under Code of Civil Procedure section 425.16; and (3) anticipated demurrer arguments challenging the sufficiency of the complaint. By placing the governing authorities before the Court at the outset, Plaintiff ensures that any responsive pleading from the defense will be measured against binding precedent already in the record.

ARGUMENT I: THE LITIGATION PRIVILEGE DOES NOT APPLY TO FRAUD ON THE COURT

A. THE GOVERNING RULE

Civil Code section 47, subdivision (b), provides a broad privilege for communications made in judicial proceedings. The privilege “applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.)

However, the California Supreme Court has expressly held that this privilege does not shield claims of fraud on the court. In *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065, the Court held:

“[T]he litigation privilege does not apply to a claim of fraud upon the court.”

This holding is categorical and binding on all California trial courts.

B. APPLICATION TO THIS ACTION

The Amended Complaint does not seek tort damages for statements made in court. It seeks equitable relief: vacatur of a judgment procured through extrinsic fraud. The in-court representations by Defendants Navaratnasingham and Reyna are pleaded as operative facts showing *how* the judgment was procured by fraud, not as the basis for a damages tort.

The distinction is dispositive. If this action sought monetary damages for the false statements themselves, the privilege might apply. Because this action seeks vacatur based on fraud that those statements enabled, the privilege is inapplicable under *Rusheen*. The fraud is the wrong. The

1 statements are evidence of how the fraud was accomplished.

2 **C. THE FRAUD ACTION AGAINST CSAA (CGC-25-631802) IS SIMI-** 3 **LARLY OUTSIDE THE PRIVILEGE**

4 With respect to the related Insurance Fraud Action (CGC-25-631802), the core misrepresentation
5 is CSAA's February 25, 2021 denial letter, which was a pre-litigation business communication
6 mailed before any lawsuit was filed. A pre-litigation insurance denial letter is not a communication
7 "in" a judicial proceeding. The litigation privilege simply does not reach routine claims-handling
8 correspondence issued before the existence of any lawsuit. (*Rubin v. Green* (1993) 4 Cal.4th 1187,
9 1194 [privilege requires a connection to pending or contemplated litigation].)

10 **ARGUMENT II: THE ANTI-SLAPP STATUTE DOES NOT APPLY TO** 11 **AN EQUITY ACTION TO SET ASIDE A JUDGMENT FOR FRAUD** 12 **A. THE GOVERNING RULE**

13 Code of Civil Procedure section 425.16 provides a special motion to strike a cause of action "aris-
14 ing from" protected petitioning or free speech activity. The anti-SLAPP analysis proceeds in two
15 steps: (1) the moving party must show the challenged claims "arise from" protected activity; and
16 (2) if so, the plaintiff must demonstrate a probability of prevailing. (*Navellier v. Sletten* (2002) 29
17 Cal.4th 82, 88.)

18 The critical question is the first step: does this action "arise from" protected petitioning activity?
19 The answer is no. The Fourth District Court of Appeal directly addressed this issue in *Finton*
20 *Construction, Inc. v. Bidna & Keys APLC* (2015) 238 Cal.App.4th 200. In *Finton*, the court held
21 that an independent equity action challenging a judgment procured by fraud does not "arise from"
22 protected petitioning activity:

23 "The gravamen of [the] complaint is the alleged fraud that [defendants] committed on
24 the court, not [their] exercise of the right of petition."
25 (*Id.* at p. 213.)

B. APPLICATION TO THIS ACTION

This complaint does not challenge defense counsel’s right to advocate, file motions, or make arguments. It challenges their false representations to the Court that induced rulings under false premises. The gravamen is not the act of filing motions in limine or making oral representations. The gravamen is that those representations were materially false and that the Court relied on them to exclude evidence and deny continuances.

Under *Finton*, the anti-SLAPP statute does not shield fraud on the court from equitable relief. Any anti-SLAPP motion in this action would fail at step one because the action does not “arise from” the protected act of litigation, but from the fraud that corrupted the litigation.

C. THE RECORD EVIDENCE INDEPENDENTLY SATISFIES STEP TWO

Even if the Court were to reach step two of the anti-SLAPP analysis, Plaintiff demonstrates a probability of prevailing through record evidence that is irrefutable:

1. **Sworn testimony** of former counsel J. Jessup establishing that the 911 audio, body-worn camera footage, and CAD logs were served on the defense in discovery and used during depositions. (Hearing Tr. Feb. 18, 2025, pp. 139–141.)
2. **Substitution of Attorney** (Transaction ID #69953800) establishing that the defense file was transferred from Michael R. Chambers and Carbone Smith & Koyama to PSA on May 4, 2023, giving PSA constructive possession for 20 months before trial.
3. **Motions in Limine Nos. 6 and 17** (January 17, 2025) in which Defendant Navaratnasingham signed a Declaration asserting that the 911 recording “was not produced in discovery” and was of “unknown provenance.” (Clerk’s Tr. Vol. 1, pp. 149–151, 238.)
4. **Open-court statements** by Defendant Navaratnasingham (“news to me”) and Defendant Reyna (“not sure what recording”) directly contradicting the sworn testimony and production history. (Hearing Tr. Feb. 18, 2025, p. 141, ll. 4–11; Trial Tr. Apr. 16, 2025, ll. 2990–2994.)
5. **Defendant’s own authentication:** Defendant Abdelhalim authenticated the 911 recording

1 under oath (“Yes. That is my voice.”), collapsing the entire provenance defense. (Trial Tr.
2 Apr. 17, 2025, l. 1979.)

3 This evidence is not drawn from allegations. It is drawn from the official court record. The defense
4 cannot dispute the Reporter’s Transcript, the Clerk’s Transcript, or sworn testimony.

5 **ARGUMENT III: THE COMPLAINT IS IMMUNE TO DEMURRER** 6 **FOR LACK OF SPECIFICITY**

7 **A. THE GOVERNING RULE**

8 A demurrer for failure to state sufficient facts (Code Civ. Proc., § 430.10(e)) tests the legal suf-
9 ficiency of the complaint’s allegations. The complaint must allege facts “with reasonable preci-
10 sion and with particularity sufficiently specific to acquaint the defendant with the nature, source,
11 and extent of the [plaintiff’s] cause of action.” (*Khoury v. Maly’s of California, Inc.* (1993) 14
12 Cal.App.4th 612, 616.)

13 For fraud-based claims, California requires heightened specificity: the complaint must plead the
14 “who, what, when, where, and how” of the alleged misrepresentation. (*Lazar v. Superior Court*
15 (1996) 12 Cal.4th 631, 645.)

16 **B. EVERY MATERIAL ALLEGATION IS SUPPORTED BY RECORD** 17 **CITATIONS**

18 The Amended Complaint satisfies the heightened specificity standard because every material alle-
19 gation is tied to a specific record reference:

- 20 • **Who:** Defendants Navaratnasingham, Reyna, PSA, Chambers, Carbone Smith & Koyama,
21 CSAA, and Abdelhalim are specifically named with their roles and dates of involvement.
- 22 • **What:** The specific false representations are quoted verbatim from the Reporter’s Transcript
23 and Clerk’s Transcript (“news to me”; “not produced in discovery”; “unknown provenance”;
24 “not sure what recording”).
- 25 • **When:** Each representation is tied to a specific date (Jan. 17, 2025 – MILs filed; Jan. 27,
26 2025 – “news to me” at hearing; Feb. 18, 2025 – repeated after Jessup testimony; Apr. 16,
27 2025 – trial representations).

- **Where:** Superior Court of California, County of San Francisco, Department 504, before Hon. Garrett L. Wong.
- **How:** The three-leg framework (Knowledge and Access; False Representations; Court Reliance) maps the mechanism of the fraud with precision.

The defense cannot claim lack of specificity when the complaint quotes the court’s own transcripts and cites the Clerk’s file. The record is the proof. The complaint aligns the record so the contradictions are undeniable.

C. THE IRRECONCILABLE TRIAD: THREE FACTS THAT CANNOT ALL BE TRUE

The Amended Complaint establishes three facts that cannot coexist:

1. The 911 recording, body-worn camera footage, and CAD logs were produced to the defense during discovery in 2022 and used in depositions. (Jessup testimony, Hearing Tr. Feb. 18, 2025, pp. 139–141.)
2. The defense file containing these materials was transferred to PSA on May 4, 2023, and PSA held that file for 20 months before trial. (Substitution of Attorney, Transaction ID #69953800.)
3. At trial, defense counsel told the Court the materials were “not produced in discovery,” of “unknown provenance,” and “news to me.” (MIL Nos. 6, 17; Hearing Tr. Feb. 18, 2025; Trial Tr. Apr. 16, 2025.)

All three facts are documented in the official record. No demurrer can reconcile them. The defense must either concede the factual framework or attempt to contradict the Reporter’s Transcript and Clerk’s Transcript, which are the authoritative record of the proceedings.

D. THE EXTRINSIC FRAUD STANDARD IS MET AT THE PLEADING STAGE

The complaint pleads all elements required for an independent action in equity to set aside a judgment for extrinsic fraud under *Kulchar v. Kulchar* (1969) 1 Cal.3d 467:

1. **Meritorious case:** The underlying personal injury action involves a defendant who authenti-

1 cated a 911 recording containing his own admission (“I barely hit him with anything”), and
2 a 9-3 jury verdict, the minimum civil majority. A single juror changing sides would have
3 altered the outcome.

4 2. **Satisfactory excuse:** The judgment was procured through fraud on the court. The defense’s
5 false representations induced the Court to exclude dispositive evidence and deny continu-
6 ances. A party deceived by fraud on the court has a satisfactory excuse for the adverse judg-
7 ment.

8 3. **Diligence:** Plaintiff attempted to present the evidence at trial. The defense’s false represen-
9 tations prevented timely admission. Plaintiff filed this equity action promptly after entry of
10 judgment.

11 4. **No adequate remedy at law:** An independent equity action is the recognized remedy for
12 extrinsic fraud. (*Kulchar*, supra, 1 Cal.3d at p. 472.) The appeal addresses the court’s inde-
13 pendent instructional error, not the fraud on the court.

14 **E. THE DISTINCTION BETWEEN EXTRINSIC AND INTRINSIC FRAUD** 15 **IS CLEAR**

16 The defense will argue that the alleged misrepresentations constitute intrinsic fraud (witness per-
17 jury weighed by the trier of fact) rather than extrinsic fraud (process corruption preventing a fair
18 contest). The law is clear that when false statements to the court induce procedural and evidentiary
19 rulings that deprive a party of the opportunity to present their case, the fraud is extrinsic. (*Aldrich*
20 *v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735; *In re Marriage of Baltins*
21 (1989) 212 Cal.App.3d 66, 82.)

22 Here, the false representations were not made to the jury for the jury to weigh. They were made
23 to the judge, who relied on them to shape the procedural and evidentiary landscape of the trial.
24 The Plaintiff could not “cross-examine” the court’s reliance on defense counsel’s representations.
25 The fraud was embedded in the procedural framework. This is the textbook definition of extrinsic
26 fraud.

ARGUMENT IV: THE INTERLOCKING CONTRADICTIONS MAKE THE RECORD THE SOURCE OF TRUTH

A. THE RECORD CANNOT BE ALTERED OR DISPUTED

The strength of this action lies in a principle that no defense motion can overcome: the record is immutable. The following documents are part of the official court file and cannot be controverted:

- The CSAA denial letter of February 25, 2021, claiming the investigation was “concluded.”
- The Substitution of Attorney (Transaction ID #69953800), documenting the May 4, 2023 file transfer.
- Motions in Limine Nos. 6 and 17 (Clerk’s Tr. Vol. 1, pp. 149–151, 238).
- J. Jessup’s sworn testimony (Hearing Tr. Feb. 18, 2025, pp. 139–141).
- Defense counsel’s in-court representations (Hearing Tr. Feb. 18, 2025, p. 141, ll. 4–11).
- Alberto Reyna’s request for “all documents, records stored in any format” regarding the incident (Feb. 26, 2024).
- CAD numbers provided to Reyna (Sept. 9, 2024).
- Defendant Abdelhalim’s authentication of the 911 recording (Trial Tr. Apr. 17, 2025, l. 1979).
- The jury’s written question asking to consider Vehicle Code sections 22107 and 21804(a).
- The 9-3 verdict.

B. THE CROSS-FRONT CONTRADICTION WEB

These record anchors create an interlocking set of contradictions that the defense cannot resolve regardless of which position they adopt:

If the defense argues the trial was fair, the evidentiary record stands as is. That record contains the verbatim transcripts of defense counsel’s false statements and the court’s reliance on them. Defending the fairness of the trial validates the factual basis for this equity action.

If the defense argues the misrepresentations were “mere advocacy”, the record shows the court actually relied on those representations to exclude evidence and deny continuances. Statements that induce judicial rulings are not mere advocacy; they are operative representations with judicial

1 effect.

2 **If the defense argues ignorance of the evidence**, the Substitution of Attorney, sworn testimony,
3 and defendant's own authentication establish that the defense had the materials for years. The
4 defense subpoenaed SFPD for the same records. (Jessup testimony, Hearing Tr. p. 140, ll. 9–15.)
5 Ignorance is structurally impossible.

6 **If the defense argues the plaintiff should have independently subpoenaed the records**, the law
7 does not require a litigant to assume opposing counsel is lying to the judge. A party is entitled
8 to rely on the candor of officers of the court. The equitable wrong is not the plaintiff's litigation
9 conduct but the court's reliance on false representations.

10 **PART II CONCLUSION**

11 The litigation privilege does not apply to fraud on the court (*Rusheen v. Cohen* (2006) 37 Cal.4th
12 1048, 1065). The anti-SLAPP statute does not protect fraud on the court from equitable relief
13 (*Finton Construction, Inc. v. Bidna & Keys APLC* (2015) 238 Cal.App.4th 200, 213). The com-
14 plaint satisfies the heightened specificity requirements for fraud because every material allegation
15 is supported by the official court record. The irreconcilable triad of facts – production, custody,
16 and denial – cannot be reconciled by any demurrer, motion to strike, or dispositive motion.

17 The record is the source of truth. The defense's own filings, statements, and client's authentication
18 built the evidentiary framework. This memorandum places the governing authorities before the
19 Court so that any defense response will be measured against binding precedent already in the file.

Respectfully submitted,

Dated: February 26, 2026



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